

Birendra Singh Yadav v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 31 July 2024 · 2024:AHC:123212-DB · WRIT - C No. - 24779 of 2024 · **Writ disposed; supplementary objections to be considered at final assessment.**

HEADNOTE

Writ seeking quashing of a checking report and notice of provisional assessment not entertained while the consumer's objection remained pending. Two weeks' liberty granted to supplement objections; assessing officer directed, at final assessment, to follow the Electricity Supply Code, 2005 and consider the supplementary objection.

FACTUAL SUMMARY

Birendra Singh Yadav filed a writ petition in the Allahabad High Court seeking quashing of a checking report dated 15 July 2022 and a notice of provisional assessment dated 25 August 2022 issued by Dakshinanchal Vidyut Vitran Nigam Ltd., and a direction that the notice be withdrawn. He sought to show that the checking report was incorrect. An objection to the provisional assessment had already been filed and remained undecided. At the hearing, counsel sought liberty to supplement those objections.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

final assessment after provisional assessment

HOLDING

A writ challenging a checking report and notice of provisional assessment will not be entertained, nor will the Court decide whether the checking report is correct, while the consumer's objection to the provisional assessment remains pending. The petitioner was given two weeks to file a supplementary objection. The assessing officer, while making the final assessment, must follow the procedure prescribed under the Electricity Supply Code, 2005 and consider that supplementary objection. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CHECKING REPORT DATED 15.07.2022 AND MERITS OF THE NOTICE OF PROVISIONAL ASSESSMENT DATED 25.08.2022

Left to final assessment under the Electricity Supply Code, 2005. ¶ 3